NATIONAL COMPANY LAW APPELLATE TRIBUNAL

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 714 of 2021 (YEAR: 2023)

CORAM: ASHOK BHUSHAN, ALOK SRIVASTAVA

Google LLC
... Appellant(s) / Petitioner(s)
Versus
Competition Commission of India
... Respondent(s)

Acts Referred:	Competition Act, 2002, Information Technology Act, 2000
Sections:	Section 4 Competition Act

JUDICIAL HEADNOTE & SUMMARY

Upheld major competition findings regarding dominant position abuse in the mobile operating system market, underscoring anti-trust regulations in digital platform ecosystems.

RATIO DECIDENDI

The Court held that: Upheld major competition findings regarding dominant position abuse in the mobile operating system market, underscoring anti-trust regulations in digital platform ecosystems. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Google LLC v. Competition Commission of India (Civil Appeal No. 714 of 2021) were adjudicated before the National Company Law Appellate Tribunal. The matter arose out of claims and contentions concerning Competition Act, 2002, Information Technology Act, 2000, particularly Section 4 Competition Act. Upheld major competition findings regarding dominant position abuse in the mobile operating system market, underscoring anti-trust regulations in digital platform ecosystems.

OPERATIVE ORDER

ORDER: Decided